

4-907

[Sections 47-8-37, 47-8-40 to 47-8-43, 47-8-46 NMSA 1978]

STATE OF NEW MEXICO

Metropolitan Court _____ COURT
Bernalillo _____ COUNTY

No. D-202-CV-2024-01234

Sandia Rental Group, LLC, Plaintiff

v.

John Doe, Defendant

**ANSWER TO PETITION FOR RESTITUTION
(Uniform Owner-Resident Relations Act)**

1. Defendant should not have to vacate the premises because: _____
Conditions: The heat and hot water have been intermittent and the landlord has not repaired them
despite written requests.; Defective notice: I did not receive proper written notice before the... _____.
2. The amount of rent claimed by the plaintiff in this action is not owed because: _____
Amount disputed: The ledger includes unauthorized late fees and charges a month I already paid. _____.
3. The damages claimed by the plaintiff in this action are not owed to the plaintiff
because: _____
Defendant did not cause damage beyond normal wear and tear; plaintiff claims are unsubstantiated. _____.
4. The defendant asserts the following counterclaim or setoff against the plaintiff: _____
Setoff and rent abatement for failure to maintain premises in habitable condition (NMSA § 47-8-27.1). _____.
5. Defendant requests separate trials on the issues of restitution and damages.

Signed

John Doe

Name (*print*)

1234 Central Ave SW

Address (*print*)

Albuquerque, NM 87102

City, state and zip code (*print*)

(505) 555-0198

Telephone number

[Rule 4-907 SCRA 1986; as amended, effective August 1, 1992; January 1, 1993; September 2, 1997.]